

**IN THE CIRCUIT COURT IN AND FOR ESCAMBIA COUNTY, FLORIDA**

DEEPGULF, INC. and  
TOKE OIL AND GAS, S.A.

Plaintiffs,

vs.

MARC M. MOSZKOWSKI

Defendant.

Case No.: 2018 CA 000543

Division: "E"

**NOTICE OF FILING RENEWED MOTION TO DISMISS FOR FRAUD ON  
THE COURT, LACK OF BOARD AUTHORIZATION, JURISDICTIONAL  
DEFECTS, AND STATUTE OF LIMITATIONS BAR**

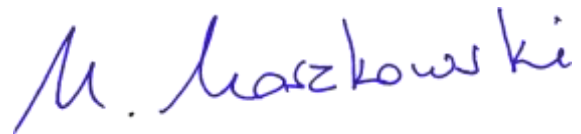
COMES NOW the Defendant, Marc Moszkowski, pro se, and hereby provides notice of the filing of the following document, submitted concurrently with a formal **Request for Judicial Review** addressed to the Honorable Chief Judge John L. Miller:

- **Defendant's Renewed Motion to Dismiss for Fraud on the Court, Lack of Board Authorization, Jurisdictional Defects, and Statute of Limitations Bar**, originally tendered on June 27, 2025, and resubmitted with attached exhibits on June 30, 2025.

This filing is presented in light of ongoing constitutional and threshold deficiencies in the case record that remain unaddressed, despite repeated and documented attempts by Defendant to obtain adjudication of those issues. It is respectfully submitted that judicial review and appropriate relief are warranted.

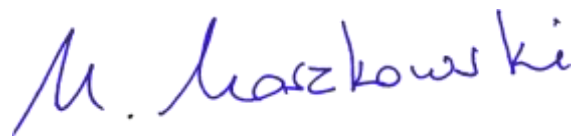
Respectfully submitted this 30<sup>th</sup> day of June, 2025.

Marc Moszkowski, Pro Se  
Email: m.moszkowski@deepgulf.net  
Le Verdos  
83300 Châteaudouble, France



### **CERTIFICATE OF SERVICE**

I hereby certify that, on this 30<sup>th</sup> day of June, 2025, a copy of this Notice has been furnished to Braden K. Ball, Jr., attorney for the plaintiffs, through the Florida Courts E-Filing Portal.



**IN THE CIRCUIT COURT IN AND FOR ESCAMBIA COUNTY, FLORIDA**

DEEPGULF, INC. and  
TOKE OIL AND GAS, S.A.

Plaintiffs,

vs.

MARC M. MOSZKOWSKI

Defendant.

Case No.: 2018 CA 000543

Division: "E"

**DEFENDANT RENEWED MOTION TO DISMISS FOR FRAUD ON THE  
COURT, LACK OF BOARD AUTHORIZATION, JURISDICTIONAL  
DEFECTS, AND STATUTE OF LIMITATIONS BAR**

COMES NOW Defendant, Marc Moszkowski, pro se, and respectfully  
files this Renewed Motion to Dismiss the First Amended Complaint in its  
entirety, on the following independent and overlapping grounds:

**I. PROCEDURAL BACKGROUND**

1. This case was filed on April 3, 2018, and was promptly removed to  
U.S. District Court by Defendant based on complete diversity of  
citizenship.
2. Plaintiffs raised no objection to removal. The federal court reviewed  
extensive filings and dismissed eight of nine counts. The ninth was

moot or inapplicable on its face.

3. Plaintiffs then appealed to the Eleventh Circuit—still without raising any issue as to diversity. Only after the Court of Appeals sua sponte raised the issue of jurisdiction did Plaintiffs abruptly assert that co-Plaintiff Toke Oil and Gas S.A. destroyed diversity.
4. The case was remanded to state court, where it has lingered for over four years, including more than three years of dormancy, despite no new factual evidence being introduced by Plaintiffs.
5. During that time, Defendant uncovered extensive new evidence. Plaintiffs submitted none. Yet they now seek trial and judgment on facts already rejected federally, now repackaged without legal basis.

## **II. LACK OF CORPORATE AUTHORITY TO INITIATE LITIGATION**

6. At all relevant times, Defendant was a director of both DeepGulf, Inc. and Toke Oil and Gas S.A.
7. No board meeting was convened, and no resolution was passed authorizing either corporation to initiate litigation.
8. The complaint proceeds ultra vires and without standing. This alone requires dismissal.

## **III. FICTIONAL DOMICILE AND MISUSE OF PLAINTIFF'S**

## **PRINCIPAL'S ADDRESS**

9. Plaintiffs listed the Pensacola home address of Plaintiff Howard as the official address for both DeepGulf and Toke. They even mischaracterized Toke as “Toke Oil and Gas, Inc.” —a suffix typical of American corporations but legally incoherent in East Timor.
10. Toke never had a registered presence in Florida or the United States, and the only address ever associated with it was the personal Florida residence of co-litigant Rus Howard. No documentation has ever been provided from Timor-Leste or any foreign government proving Toke’s continued legal existence, registration, or foreign domicile. The only reasonable inference is that Toke did not qualify as a bona fide foreign plaintiff, and its inclusion served solely to defeat diversity jurisdiction and remand the case back to state court.
11. Toke has been named as Plaintiff since the original 2018 Complaint. Plaintiffs never emphasized its alleged foreign status during federal proceedings—through summary judgment and even appeal—until it became tactically advantageous to claim foreign status and destroy diversity..

## **IV. FRAUDULENT JOINDER TO EVADE FEDERAL SCRUTINY**

- 12.** Plaintiffs' First Amended Complaint falsely claims: "Toke Oil and Gas is a wholly owned subsidiary of DeepGulf, domiciled in Timor Leste also known as East Timor in the United States."
- 13.** This phrase is not only incoherent—it provides no documentation of foreign incorporation, no current registration, and no governmental attestation from East Timor.
- 14.** Plaintiffs used Toke's alleged foreign status not to reflect reality, but solely to destroy diversity and escape federal jurisdiction after losing eight counts.
- 15.** The use of a defunct, unauthorized foreign co-Plaintiff with no genuine address, documents, or board approval is jurisdictional fraud.

## **V. STATUTE OF LIMITATIONS BAR**

- 16.** All claims arise from events between 2010 and 2014. Plaintiffs were informed in writing of all key facts between 2012 and 2014.
- 17.** The Complaint was filed in 2018, beyond the four-year limitation for civil theft, fraud, conversion, and related counts (Fla. Stat. § 95.11).
- 18.** The Court has never ruled on this dispositive issue—one that should have precluded the need for trial altogether.

## **VI. ILLUSORY INJURY AND ARITHMETICAL ABSURDITY**

**19.** Plaintiffs claim \$345,000 was misappropriated by Defendant. In fact, the sum was transferred by a Timorese co-founder out of his personal share to cover Defendant's tax burden—caused by DeepGulf's own failure to pay three years of contractually guaranteed salary.

**20.** DeepGulf received 50.3% of project revenue despite owning only 33.33%, while the Timorese partners—owners of 66.67%—received just 49.7%. The \$345,000 was part of their underpaid share.

**21.** For DeepGulf to claim that it was “stolen from” is factually and mathematically absurd: it received more than it was owed. If any party were entitled to reimbursement, it would be the Timorese partners.

**22.** At the time the Complaint was filed, DeepGulf owed Defendant \$888,000 in unpaid salaries alone (3 years at \$120,000, plus 4 years at \$132,000), not including over \$150,000 in unreimbursed expenses.

## **VII. FAILURE TO ADJUDICATE INDIGENCY AND EXCLUSION FROM TRIAL**

**23.** Defendant was excluded from trial due to:

- Judicial lien on his bank account (seizing all sums above €646) by a Plaintiff confederate;

- Seizure and forced auction of his only home by a Plaintiff confederate;
- Physical incapacity (dual untreated inguinal hernias);
- Lack of funds to travel.

**24.** The Court refused to adjudicate Defendant's indigency, ignored formal requests for remote appearance, and proceeded in default.

**25.** This violates the Due Process Clause of the U.S. Constitution and Article I, Section 9 of the Florida Constitution. It also contradicts *Boddie v. Connecticut*, 401 U.S. 371 (1971), which prohibits denial of access to indigent litigants where courts are the only forum for redress..

**WHEREFORE**, Defendant respectfully moves this Court to:

- 1.** Dismiss the First Amended Complaint with prejudice;
- 2.** Declare that Plaintiffs lack standing due to lack of board authorization and fictitious plaintiff status;
- 3.** Find that all claims are time-barred;
- 4.** Acknowledge that trial proceeded in violation of constitutional safeguards;
- 5.** And grant all such further relief as the Court deems just and proper.



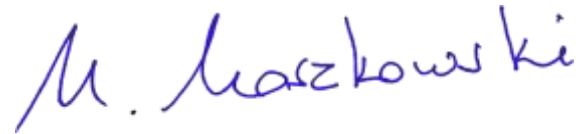
Respectfully submitted this 30<sup>th</sup> day of June, 2025.

Marc Moszkowski, Pro Se

Email: m.moszkowski@deepgulf.net

Le Verdos

83300 Châteaudouble, France



### **CERTIFICATE OF SERVICE**

I hereby certify that, on this 30<sup>th</sup> day of June, 2025, a copy of this Motion has been furnished to Braden K. Ball, Jr., attorney for the plaintiffs, through the Florida Courts E-Filing Portal.

